Lily Worldwide Private Limited

(Formerly known as Lily Packers Private Limited)

VENDOR/SUPPLIER ADDITIONAL DOCUMENTATION

Thank you for being interested in **Lily Worldwide Private Limited**

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Lily Worldwide Private Limited
(Formerly known as Lily Packers Private Limited)

(VAD & VENDOR CODE To be filled by LWPL only)
VAD No.: 00 /00 /2023-2024
VENDOR CODE: 00 /00 /2023-2024

Vendor / Supplier: NIHVA Technologies Pvt Ltd

Address

Registered Office: 187, G-Block, 1st Floor, Above Renault Showroom, Thermax chowk, MIDC, Chinchwad. Pune – 411019

Factory: Behind Jyotiba temple
Gat no-199 ,near jk automation pvt Ltd
Jyotiba Nagar Talwade , Pune, Maharashtra 411062

Contact

Person Name: Mr. Vijay Tarak
Telephone / Fax: Mobile: 8551093333 / 7410169333

Type of Company

- (●) Proprietary
- ( ) Partnership
- (■) Private Limited
- ( ) Public Limited
- ( ) LLP

Nature of Business

- [■] Manufacturer
- [ ] Distributor
- [ ] Agent
- [ ] Trading
- [ ] Service Provider

[ ] If authorised Distributor/Stockist- Please state the name of your Principle & details of Products. (Photocopy of Certificate(S) must attached.)

Please Specify your Product/Services offered

MS structure and Motorized Top Retractable Roof

NIHVA TECHNOLOGIES PVT LTD * PUNE *

Signature

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Lily Worldwide Private Limited
(Formerly known as Lily Packers Private Limited)

VAD No.: 00 /00 /2023-2024
VENDOR CODE: 00 /00 /2023-2024

Name of Directors/Partners/Proprietors/Chief Executives:

Director	Mr. Vijay Tarak	e-mail	sales@nihva.com
-		e-mail	
-		e-mail	
-		e-mail	

DOES YOU COMPANY HAVE ISO CERTIFCATE? - Yes

Statutory Registration Numbers (Please Give Details, Where Applicable and Attach Supportings)

G.S.T.REG. #	27AAECN0437H1ZM	UDYAM REG. #	UDYAM-MH-26-0122417
S.S.I.REG.Part-1#		UDYOG AADHAAR #	MH26A0007385
S.S.I.REG.Part-2 #		IEC CODE #	
PAN #	AAECN0437H	TAN #	

Declaration For Section 194Q of Income Tax Act

- Turnover In Last Financial Year ◉ More Than 10 Crore ○ Less Than 10 Crore

We shall liable to deduct TDS for more than 50 Lakh Party to Party Turnover during the same Financial Year as Under Section 194Q for receipt of Goods.

Bank A/c Details (mandatory for e-Payment)

Supplier Name As per Bank Records	:	NIHVA Technologies Pvt Ltd
Bank Account #	:	41419721354
Bank's RTGS/NEFC/IFSC Code:		SBIN000452[illegible]
Branch Swift Code	:	
Bank Name (where credit to be given)	:	State Bank Of India
Bank Address	:	PB No. Kasarwadi near Dai Chi Co. Pune Opp Hotel Kalasagar 411034
Supplier E-mail ID	:	sales@nihva.com

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(VAD & VENDOR CODE To be filled by LWPL only)
VAD No.: 00 /00 /2023-2024
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Name and Address of your associate & other manufacturing units:

Product facilities : (Not applicable for traders)

2500 Sq.m Manufacturing facilities.

Details of Machinery & other Equipment:(Use additional sheet if required)

Bending machine, Bench Drilling Machine, Argon Welding Machine, Co2 Welding Machine, Arc Welding Machine, Cold Rolling Slat Machine.

Details of Measuring Testing Equipment, etc. (Use additional sheet if required)

Vernier Calliper, Micrometer, DAP Tester, Measuring Tape, Laser Distance Mtr, Laser Leveler.

Reputed Companies & Govt. Dept. with whom registered as approved suppliers:
(Use additional sheet if required)

Tata Motors, Ferrero, Mars Petcare India, Mercedes-Benz India Pvt Ltd, 06_Bharat Forge Limited, Nestle India Limited, ISRO.

Investments in Plant & Machineries	Turnover of Last Financial year
40,00,000	Financial Year 2023- 2024 is – 30,33,19,135

DECLARATION

I/we NIHVA Technologies Pvt Ltd declare and confirm that the information furnished and attachments submitted with the application are true and correct.

I/we are aware that any false information provided herein will result in the rejection of my/our application for registration.

I/we shall be bound to the acts of the duly authorized signatory who has signed this application and of any other person, who in the future, may be appointed by us in his place whether or not an intimation of such changes has been given.

NIHVA TECHNOLOGIES PVT. LTD. PUNE

SIGNATURE
(VENDOR/ SUPPLIER)

VERISON:3.240328.2024

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The Master Vendor Agreement (the '**Agreement**') Executed on the date this is signed / applied for (herein referred to as **the 'Execution Date'**)

BY AND BETWEEN

M/s Lily Worldwide Private Limited, a company incorporated and registered under the Companies Act, 1956, having its corporate office at Suite-IX, Ground Floor, Atelier, Worldmark-2, Aerocity, Indira Gandhi Int. Airport, New Delhi – 110037 (Hereinafter referred to as '**LWPL**' or "**Vendee**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its affiliates (wherever appliable), successors, transferees, nominees and assigns) of the **First Part;**

AND

M/s _____, a Company incorporated under the Companies Act 1956/2013 or a proprietorship concern or a partnership concern or LLP [either of them] having its office at Address mentioned hereinbefore in the Application form through Its Authorized representative/s (Hereinafter referred to as the '**Vendor**' which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors, transferees, nominees and assigns) of the **Second Part;**

Both THE VENDOR and THE VENDEE, wherever the context permits, are hereinafter individually referred to as the "Party" and collectively as the "Parties."

WHEREAS, the Vendee is engaged in business of Sourcing and Procurement, marketing and Selling various Products and have a wide customer base in various sectors of industry including Automotive, defence and Aerospace. Vendee may, from time to time, desire to purchase Goods, procure services from the vendor for sale to or providing services to its customers/ End User.

AND WHEREAS the Vendor is engaged in the business of providing services or

2.3

consultancy or supplying materials or Selling Products or engaged in manufacturing activities or executing work [all or any of the mentioned activity(s)] and is looking for an entity to provide a customer base to expand its business and thus is ready willing to take up the contract(s) or order(s) or work order/s [any of the mentioned activity(s)] which may be assigned/ offered by the Vendee.

AND WHEREAS Vendor and Vendee are desirous to enter into this Agreement to

3.2

establish general Terms and Conditions under which Vendee may place one or more Purchase Orders with the Vendor for the Procurement of Products either for its own usage or for the End User.

Now therefore, in consideration of the representations, mutual covenants and promises contained herein, the parties, with the intent to be legally bound, hereby agree as follows:

1. DEFINITIONS

In the agreement, the following words and expressions shall unless the context otherwise requires have the followings meanings:

"Affiliate" shall mean, It's Divisions, Group Companies, Related Companies, Subsidiaries & Holding Company.

"Product" shall mean and include any or all Goods and/or Services for the supply of which any PO has been raised by the Vendee.

"Non-Conforming Products" means any product supplied under any PO raised to the Vendee by the Vendor that does not confirm with the product requirements or specifications at the time that such product is delivered to Vendee."

"Sourcing/Source" means a procurement decision whereby the purchasing of Goods and Services or Construction are directed towards or through a particular vendor because of standardization, pricing, warranty, or other factors.

"End User" shall mean and include any Entity, Person (Natural or Legal) or firm who is known, introduced, revealed or disclosed to the Vendor as a Customer or prospective Customer of LWPL or its Affiliate.

2. SCOPE

2.1 This document serves as the basis and the foundation of Vendor-Vendee relationship between the parties. Terms contained herein serve as the general terms and conditions of all Purchase Orders ('PO') that are raised. All Purchase Orders are raised and issued in accordance with this document. In case of any discrepancy between these General Terms and Terms of the PO, Terms of the PO shall supersede.

2.2 The parties acknowledge that this Agreement will not constitute a commitment to purchase any quantity of products/goods or procurement of any services. Subject to the terms contained in the PO, LWPL shall only be committed to purchase Products or procure services and Vendor shall only be committed and authorized to ship Product and provide services to LWPL when LWPL has tendered a PO to the Vendor which has been validly accepted by the vendor.

The terms contained herein and the contents of all the pages of this VAD shall be considered as accepted by the vendor and shall be binding on both the parties even if vendor puts signature on any single page of the entire agreement or Vendor Application and Documentation. Excepting for the rates agreed between the parties, any additional and/or different/conflicting terms & conditions and policies proposed by the vendor in any quotation, acknowledgment, confirmation, PO or other document whether communicated to LWPL prior to or after this VAD are hereby deemed to be material alteration of this Agreement and notice of objection is hereby given, and any such terms and conditions and policies stand to be superseded by this document and shall be void ab initio.

2.4 The interpretation and construction of the Agreement shall be subject to the following: i) The section headings herein are for convenience only and shall not affect the construction hereof. ii) Unless the context otherwise requires, Words imparting the singular will include the plural and vice versa. iii) Any obligation not to do anything will be deemed to include an obligation not to suffer, permit or cause that thing to be done. iv) Words such as "includes", "including" and "such as" are deemed to be followed by "without limitation".

3. TERM

3.1 This Agreement shall take effect: i) for existing vendors, retroactively from the date of last subsisting PO issued to the existing Vendor; and ii) for New Vendors, from the date of execution and shall be effective for an indefinite period of time unless terminated earlier by

LWPL.

Vendee may terminate this agreement and any individual PO for undelivered products (whether manufactured or not) with immediate effect without giving any notice to the Vendor. Upon termination for any reason, Vendee's only responsibility to the Vendor shall be the Fees for: (a) goods previously made, delivered to, inspected and accepted by the Vendee; and (b) services performed and accepted before the date of receipt by the seller of the termination Notice.

ORDERS & TERMS OF PURCHASE

4.1 Vendor shall supply to Vendee the Products in accordance with (i) this Agreement, (ii) the PO & its Terms and Conditions, (iv) All Applicable Laws, (v) Vendor's any other requirement and Standards related to products and their production as may be communicated by vendor from time to time.

4.2 Vendor has no obligation whatsoever to place any PO with vendor or purchase products from vendor. If any forecasts or projections are provided by Vendee to the Vendor or otherwise discussed between the parties, they are purely for Vendors convenience and shall not be binding on either party.

4.3 No proposal by Vendor shall be accepted or deemed accepted by Vendee unless and until vendee accepts the proposal in a written PO, which the vendee is not obliged to accept.

4.4 Vendee may at its sole discretion amend or cancel the PO by written or electronic notice to Vendor.

5. DELIVERY

5.1 Vendor shall deliver the Products purchased under each PO by the delivery date set out in the PO, but such goods shall not be delivered more than 3 business days in advance of the delivery date without prior written consent of the Vendee. Vendor shall deliver all products covered by a single PO in a single delivery unless Vendee requests delivery in installments. Vendee's acceptance of a delivery containing less than the required quantity shall not relieve Vendor of its obligation to deliver the balance of the ordered Goods. Time is the essence under this Agreement.

5.2 If Products are not delivered by the Vendor as specified in the PO or they are Non-Conforming products then, without limiting any other right or remedy which is available to the Vendee under this Agreement or under any other law for the time being in force, Vendee may: (i) refuse to take any attempted delivery of products under the PO, (ii) obtain substitute Goods from any other vendor and recover from Vendor any cost and Expenses reasonably incurred by Vendee in obtaining such substitute product, which the vendor shall reimburse within 30 days; (iii) take corrective actions either through a third party or by its own agency to make the goods usable for the purpose for which it was bought by Vendee, and, recover all the expenses or other costs actually incurred, spent, or suffered by Vendee, from the Vendor. Corrective Action shall mean and include any rework, repair, make over, etc., done to the goods/products supplied for making it usable for the purpose for which it has been

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bought; and (iv) claim damages for any other costs and expenses or losses directly or indirectly resulting from Vendor's failure to deliver the product pursuant to the PO.

6. FEES AND PAYMENT

6.1 The Vendee shall pay to the Vendor for the goods purchased/ Services performed in accordance with rates specified in the relevant Purchase Order ("**Fee**"). The Vendee shall ensure timely payment to the Vendor as per the terms agreed in the PO or as otherwise agreed between the parties through written communication between the parties.

6.2 Unless otherwise agreed between the parties in writing, the Fee shall include all costs for packaging, transportation and all applicable taxes and other governmental charges (including, without limitation GST, Custom duties, VAT, etc.)

6.3 The Vendee shall be entitled to set-off / adjust / deduct any amount owed/due from the Vendor to LWPL against any amount owed/due from LWPL with respect to any other invoice(s) under this Agreement or any other agreement between the parties.

6.4 Vendor represents and warrants that the Fee is not in excess of the price charged to the vendor's other customers for similar quantities of like products. If Vendor sells any product that is identical or substantially similar either in appearance, functionality, or quality to the products ordered and supplied to the vendee for less than the Fee charged to the Vendee, Vendor shall reduce the Fee to match the lower price for so long as the lower price is available and shall refund the Vendor the difference between the Fee and the lower price it charged for such identical or similar products after Vendor began charging the lower price.

6.5 It has been further agreed that in case of violation of time stipulations and not meeting the product specifications or if the Vendor finds out that the price difference in the material supplied and the same available products in the market, the Vendee shall be entitled to reject the goods within 7 days of the receipt thereof and would be further entitled to claim damages from the Vendor to the extent of the losses suffered by the Vendee.

6.6 Vendor in no circumstances have any right to hold the Goods of Vendee and any attempt to do so with mala fide intention shall make them liable for damages.

6.7 Vendor shall pass on to the Vendee the immediate benefit of any further reduction in the price of any of the items mentioned in the PO or Taxes occurring before the actual delivery date of the goods.

6.8 In case of increase of price, occurring before the date of actual delivery of the goods, of any of the items mentioned in the PO, Vendor shall give 90 days' notice to Vendee before any such increase is passed upon to the Vendee. Any hike in price/Fee for the Goods shall only be justified by providing documents related to such price rise and supplementary invoice with reasonable justification.

6.9 Vendor Agrees that Vendee shall be entitled to charge to Vendor any losses incurred by the Vendee due to defect/default in the Product supplied, including but not limited to any 'Retro' charged by End User Vendee for defects in the Product supplied. Vendor shall pay to the Vendee such amount charged as and when demanded by the Vendee, provided a cost/charge statement along with relevant back-up in support of the claim is supplied to the Vendor. For the purposes of this sub-clause, Retro' shall mean any charge retrospectively imposed upon Vendee by the End User for the supply of defective Products procured from Vendor, where the defects came to the knowledge of the End User later than the date of conclusion of supply.

7. WARRANTIES AND REPRESENTATIONS

7.1 Vendor represents and warrants that the products/goods, components, etc. supplied/to be supplied to the vendor under any PO issued shall: (i) be free from defects in design, workmanship, materials, and hazards to life, animal, or property; (ii) be merchantable, suitable, and fit for their intended purposes and conform to any warranty, description, or sample provided to Vendee; (iii) be in conformance with the specification provided by the Vendee, and any data, drawings, representations, specifications, and documentation relating to the Product/goods; (iv) do not violate, use or infringe any existing or pending third-party intellectual property rights; (v) do not breach any agreement between Vendor and any third-party; (vi) be supported by proper evidence and documentation (which shall be supplied to Vendor upon request), such as test results, for any efficacy, performance or similar claims made on or about the Product/goods or its packaging or labeling; and (vii) be in compliance with Applicable Laws.

7.2 In addition, Vendor represents and warrants that: (i) Vendor has the legal right to sell the Product; (ii) the person executing the Agreement on behalf of Vendor has the requisite capacity and authority to enter into this Agreement; and (iii) Vendor has all requisite certifications (national and international) related to the segment/sector in which it operates or supplies product to including ISO, ITAF, etc., as the requirement may be.

7.3 The foregoing warranties are in addition to all warranties implied by law and shall survive delivery, inspection, acceptance, and payment. All warranties will survive delivery of the Product and will not be deemed waived, terminated, or merged by LWPL upon acceptance of or payment for the Product.

8. CONFIDENTIALITY AND PROPRIETARY INFORMATION

8.1 For purposes of this Agreement, the term "Confidential Information" means non-public information concerning the business affairs, Customers, clients, operations, IPR and assets of the Vendee and its affiliates (collectively, the "**Disclosing Party**") including but not limited to Intellectual Property Rights, Financial information, clients, employees data, plans, pricing, know how, trade secrets, drawings, designs, All communications between the Vendor & Vendee, etc., provided to the Vendor (the **"Receiving Party"**) whether in writing or oral, whether or not marked as Confidential.

8.2 Vendor shall maintain confidentiality of all such confidential information, and without obtaining the written consent of the Vendee, it shall not disclose any relevant confidential information to any third parties, except for the information that: (a) is in the public domain at the time of disclosure by Disclosing Party; (b) will be in the public domain (other than through the Receiving Party's unauthorized disclosure); (c) is obtained by Receiving Party from a third party without any obligation of confidentiality who did not receive same, directly or indirectly, from Disclosing Party; (d) is approved for public release by express prior written consent of the Disclosing Party; (e) is under the obligation to be disclosed pursuant to the applicable laws or regulations, rules of any stock exchange, or orders of the court or other government authorities; or (f) is required to be disclosed by any Party to its shareholders, employees, agents, consultants, sub-contractors, investors, legal counsels or financial advisors who need to know such information for the purpose of carrying our party's obligation under this Agreement or any PO raised hereunder, provided that such shareholders, employees, agents, consultants, sub-contractors, investors, legal counsels or financial advisors shall be bound by the confidentiality obligations similar to those set forth in this clause. Recipient shall use the confidential Information only for the purpose of carrying out its obligation under this contract and not for any other purpose.

8.3 The obligations set forth in this Agreement relating to the protection of CONFIDENTIAL INFORMATION shall remain in effect for a period of Three (3) years from the termination of this Agreement.

8.4 Upon the expiration or termination of this Agreement, or at the Disclosing Party's request at any time during the term of this Agreement, the Receiving Party and its Representatives shall promptly return to the Disclosing Party all copies, whether in written, electronic or other form or media, of the Disclosing Party's Confidential Information, or destroy all such copies and confirm the same in writing to the Disclosing Party.

8.5 The Receiving Party shall not reverse engineer, disassemble, or decompile, copy, reproduce, sell, etc., any design, drawings, product, prototypes, software, or other tangible objects that embody the Disclosing Party's Confidential Information and that are provided to the Receiving Party under this agreement or any PO raised.

8.6 Vendor shall at all times be responsible for, shall protect, indemnify, hold harmless and defend Vendee and its affiliates, from and against any claim by a third party for infringement of any IPR which may arise out of the goods delivered or Services performed and/or provided by Vendor under this Agreement.

8.7 Terms of this clause shall be in addition to and not in derogation of any separate Non-Disclosure Agreement (NDA) executed between the parties. In the event of any conflict between the provisions of this clause and the NDA, the separate NDA shall prevail.

9. OWNERSHIP OF TOOLS

9.1 If any tool or raw material for production, etc. is provided by LWPL then such tool or raw material shall exclusively be used for the work/job of LWPL and not for any other company's work/job. In the aforementioned case, LWPL holds the right over the tools, and the vendor shall be liable to have them returned in a safe and usable,

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and secure condition as and when the vendor has received the same. No modifications to the tool without prior written intimation and approval of LWPL. Any modifications done without intimating LWPL shall be construed as willful misconduct and breaching of the code of conduct and LWPL is liable to recover damages and losses from the vendor. Any damage to the tool has to be informed to LWPL and if no intimation has been given beforehand and before returning the tool it shall be held that the vendor has deliberately gone out of the way to damage the equipment and cause loss to LWPL and LWPL is entitled to recover, 2x cost of the tool, cost of business foregone and repairs to the tool/machinery. LWPL is the sole owner and has only given a limited scope of power for the usage which is documented and shall be shown by a vendor on every step to LWPL.

10. NON-COMPETE AND NON-SOLICITATION

10.1 During the term of this Agreement and for a period of 36 (Thirty Six) months thereafter, the Vendor shall not directly or indirectly, whether as an owner, partner, shareholder, consultant, agent, employee, co-venturer or otherwise, or through any other person (which, for purposes of this section, shall mean an individual, a corporation, a partnership, an association, a joint-stock company, a trust, any unincorporated organization, or a government or political subdivision thereof):

i. hire, engage or attempt to hire, engage any employee, contractor, agent or consultant of the Vendee or any affiliate of the Vendee or assist in such hiring by any other person or encourage any such employee, contractor, agent or consultant to terminate, cease or reduce his relationship/business with the Vendee or any affiliate of the Vendee;

ii. request or cause End User, customers, suppliers or other parties with whom the Vendee or any of its affiliates has a business relationship to cancel, terminate, cease or reduce any such business relationship with the Vendee or any of its affiliates; and

iii. engage in any business or trade (directly or indirectly) that is in competition with the sourcing and aggregator business of the Vendee in India.

iv. provide or attempt to or negotiate to provide Product to or receive or attempt to or negotiate to receive goods or services from, other than only through LWPL, the End User and customers, suppliers, Vendors or other persons with whom LWPL or any of its affiliate has a business relationship.

10.2 At the time of accepting each PO or otherwise, if the identity of the End User has been disclosed to or becomes known to the Vendor, the Vendor shall disclose any business or employment relationship the Vendor may have had or currently has with the End User and shall refrain from doing business with the End User directly or indirectly, except through the Vendee. Vendor shall promptly terminate its relationship with the End user after being called upon to do so by the Vendee through a written notice. In the event Vendor refuses to terminate its current relationship with the End User and/or end doing business directly or indirectly with the End User, except through the Vendee, the Vendee shall be entitled to terminate this Agreement and/or any PO and recover any damages, loss of profit or business opportunity, etc. which may have incurred by the Vendee due to such refusal.

11. INDEMNITY

11.1 Vendor shall indemnify, defend and hold harmless the Vendee and its representatives, directors, employees, agents, affiliates, successors, and permitted assigns (collectively, "**indemnified Party**") against any and all losses, damage, liabilities, deficiencies, claims, actions, Judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind (Including but not limited to attorney's or other professional fees) (i) arising out of any occurrence, including injury or death that is caused by Vendor's breach of this Agreement or negligent or intentional Acts or omissions of Vendor, or (ii) any 3rd party claims arising from Vendor's performance or breach of its obligations under this Agreement or any PO raised in accordance with this agreement, or (iii) in connection with a claim relating to the product(s)/goods or services supplied.

11.2 Vendee shall have the right to retain/withhold, out of any payment to be made to the Vendor, an amount sufficient to indemnify the Vendee completely against any such third-party claims and all associated costs.

12. MISCELLANEOUS

12.1 If any term, provision, covenant, restriction or any part thereof of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, void or unenforceable, the remainder of the terms, provisions, covenants and restrictions set forth herein shall remain in full force and effect and shall in no way be affected, impaired or invalidated.

12.2 Vendor shall not be entitled to assign its rights and obligations under the Agreement to a third party without the prior written consent of all the Vendee.

12.3 This Agreement and its performance shall be governed by and construed in all respects in accordance with the Laws of the Republic of India and subject to the Arbitration Clause, the courts at New Delhi shall have the exclusive jurisdiction over any dispute arising under this Agreement.

12.4 This agreement, or any term thereof, may be supplemented, altered, amended, modified by the Vendee, without proclamation, for the benefit of both the parties. Without the prior written consent of the Vendee, Vendor shall have no rights directly or indirectly to unilaterally Amend, Change, Alter, modify, Tamper or perform any similar type of operation on this Agreement, or any portion thereof. Any such unilateral amendment, Alteration, modification, Tampering or other similar type of operation shall be deemed to be fraud played upon the company and be void ab initio and shall attract appropriate consequential Legal action whether Civil and/or Criminal.

12.5 Under no circumstances will Vendee be liable to vendor or any other person or entity for indirect, incidental, consequential, special, exemplary or punitive damages (including lost profits, property damage, loss of revenue, loss of business or lost savings), arising out of or in connection with this agreement, whether or not Vendee has been advised/informed of the possibility of such damages. If Vendor should become entitled to claim damages from Vendee (including for negligence, strict liability, breach of contract, misrepresentation and other contract or tort claims), Vendee will be liable only for the amount of vendor's actual direct damages, not to exceed (in the aggregate for all claims) the Fees/payment payable by Vendee for the specific product or service that give rise to such liability and is the subject of the claim.

12.6 The failure of Vendee to insist in any instance upon the strict keeping, observance or performance of any provisions of this Agreement or the PO issued hereunder shall not be construed as a waiver or relinquishment for the future of such provisions, but the same shall continue and remain in full force and effect. No waiver by Vendee of any provision of this Agreement shall be deemed to have been made unless expressed in writing and signed by the party.

12.7 It is agreed and understood that, as between the Vendor and the Vendee, the legal relationship is strictly on a principal-to-principal basis. Nothing is deemed to constitute or imply any other legal relationship such as principal-agent, master-servant, Joint Venture, partnership or otherwise and no representation to any such effect would be made by the Vendor to anyone. The Vendor shall indemnify the Vendee against any claims, expenses, liabilities and losses and for any third-party claims regarding and/or arising under or in connection with the relationship and/or misrepresentation thereby by the Vendor.

12.8 Neither Party shall be liable for failure to perform any duty or obligation under this Agreement or delay in performing any obligation under this Agreement, if such failure or delay is due to force majeure, including, but not limited to, Act of God, war, embargo, riot, insurrection, sabotage or other civil unrest; fire, explosion, flood or other natural disaster; accident or breakdown of machinery; unavailability of fuel, labour, containers, or transportation facilities; accidents of navigation, breakdown or damage of vessels or other conveyances for air, land or sea; other impediments or hindrances to transportation; strike or other labour disturbances; government restraints or any other cause beyond the control of the affected party. Any Party claiming a Force Majeure event shall use reasonable diligence to remove the condition that prevents performance and shall not be entitled to suspend performance of its obligations in any greater scope or for any longer duration than is required by the Force Majeure event.

13. ARBITRATION

13.1 Any dispute relating to or arising out of or in connection with any of the matters arising out of or in connection with this Agreement shall be referred exclusively to Arbitration before a sole arbitrator appointed in accordance with the arbitration and conciliation act, 1996 as amended from time to time. The Seat and Venue of such proceedings shall be at New Delhi. Language shall be English. The right to arbitrate Disputes under this Agreement shall survive the expiry or termination of the Agreement.

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Lily Worldwide Private Limited
(Formerly known as Lily Packers Private Limited)

Environmental Management Questionnaire for Suppliers

We take this opportunity of informing you that, at LWPL, we have opted to develop Environmental Management System. We wish to have your cooperation in promoting the noble cause of Environmental Protection and preservation at your organization also. Please spare sometime and analyze environmental performance at your end and provide us following information at the earliest.

Please note that we have decided to give preference to the organizations that are ready to take environment care into their operations.

1. Name of supplier:
2. Address: NIHVA Technologies Pvt Ltd. 187, G-Block, 1st Floor, Above Reliable Showroom, Thermax Chowk, MIDC, Chinchwad. Pune – 411019

   Phone: 7410169333/8551093333 Fax:

   E-mail: sales@nihva.com / info@nihva.com
3. Do you have Environmental Management system in place? ○ No ◉ Yes
4. Is your organization certified for ISO 14001? ○ No ◉ Yes
5. Do have written Environmental Policy? ○ No ◉ Yes

(If yes, please attach the copy of the same)

6. Please elaborate, how your organization is making effort to improve environment

(Attach sheet if needed):

7. Kindly define, Your Waste Disposal Management System:

(Attach sheet if required):

8. List of the environmental legal requirements applicable to your organization.

Sr. No.	Applicable legal requirements	Status as on date
1		
2		
3		
4.		

9. List of products supplied to us by your organization:

Sr. No.	Products Supplied	Approximate Annual Quantity
1		
2		
3		
4.		

10. Do you have Material safety data sheet for products supplied?

Please send us material safety data sheet for products supplied by you along with the questionnaire

NIHVA TECHNOLOGIES PVT. LTD.

SIGNATURE

NAME : Mr. Vijay Tarak
DESIGNATION : Director
DATE 28-02-2025

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